



CERTIFICATION

This is to certify that the attached **Ordinance Numbered 50, Series of 2009**, entitled **"FURTHER AMENDING ORDINANCE NUMBERED 271, SERIES OF 1957** [AN ORDINANCE SETTING "CURFEW HOURS" FOR MINORS TO ROAM, OR PLAY ON STREETS, ROADS, PLAZAS, PARKS AND OTHER PUBLIC PLACES OR ESTABLISHMENTS IN THE CITY, AND PROVIDING FOR OTHER PURPOSES]" which was passed by the *Sangguniang Panlungsod ng Baguio* on **25 May 2009** and approved by the City Mayor on **09 July 2009**, was duly posted in the bulletin boards at the Baguio City Hall, at the Baguio City Market and at the Baguio Health Department for at least three (3) consecutive weeks starting **14 July 2009**.

The text of the said ordinance was published in the issue dated **22 July 2009 (Vol. 13, No. 251)** of the **Sun Star Baguio**.

Baguio City, Philippines, this 4th day of August 2009.


PRUDENCIO M. PARNACIO
City Secretary 

MRCA/glo



Republic of the Philippines
City of Baguio
SANGGUNIANG PANLUNGSOD
(CITY COUNCIL)

REGULAR SESSION HELD ON 25 MAY 2009.

PRESENT:

Hon. Rocky Thomas A. Balisong, *Acting City Vice Mayor and Temporary Presiding Officer*;
Hon. Betty Lourdes F. Tabanda, *Member*;
Hon. Galo D. Weygan, *Member*;
Hon. Nicasio M. Aliping Jr., *Member*;
Hon. Antonio R. Tabora Jr., *Member*;
Hon. Erdolfo V. Balajadia, *Member*;
Hon. Nicasio S. Palaganas, *Member*;
Hon. Isabelo B. Cosalan Jr., *Member*;
Hon. Richard A. Cariño, *Member*;
Hon. Fred L. Bagbagen, *Member*;
Hon. Elaine D. Sembrano, *Member*; and
Hon. Gloria Ysabel V. De Vera, *Ex-Officio Member*.

ABSENT:

Hon. Perlita L. Chan-Rondez, *Member* (on travel abroad); and
Hon. Joel A. Alangsab, *Ex-Officio Member* (with prior notice).

*Introduced by Hon. Nicasio M. Aliping Jr.
and Hon. Betty Lourdes F. Tabanda.*

ORDINANCE Numbered 50.
(Series of 2009)

FURTHER AMENDING ORDINANCE NUMBERED 271, SERIES OF 1957
[AN ORDINANCE SETTING "CURFEW HOURS" FOR MINORS TO ROAM, OR PLAY ON
STREETS, ROADS, PLAZAS, PARKS OR OTHER PUBLIC PLACES OR
ESTABLISHMENTS IN THE CITY, AND PROVIDING
FOR OTHER PURPOSES]

Explanatory Note

It has been observed that there is a significant rise in the number of acts of delinquency among children involved in nocturnal law infractions in the City of Baguio. Children are seen loitering or roaming on the streets, plazas, bars, stores, restaurants and other public places or establishments in the city, especially at night when such acts of delinquencies are committed. There is a growing clamor from parents, guardians and administrators of educational institutions to curb incidents involving such acts of delinquency of which most of the victims are likewise children.

To stop further incidents and/or deter teenage gangs there is a need to start the curfew time early in the evening. There is also need to ensure that the child/children are protected from harm. Section 16 of Republic Act No. 7160, otherwise known as the Local Government Code of 1991, provides:

"SEC. 16. *General Welfare.* - Every local government unit shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare. Within their respective territorial jurisdictions, local government units shall x x x, promote health and safety, x x x, maintain peace and order, and preserve the comfort and convenience of their inhabitants." (Underscoring supplied)

The experimental implementation of Executive Order No. 01, Series of 2007 (Executive Order No. 086, Series of 2007), of the Honorable Reinaldo A. Bautista Jr., City Mayor, which was enforced last 23 July 2007 was very effective and welcomed by the different sectors in the city:

NOW THEREFORE, upon recommendation of the Acting City Vice Mayor and Temporary Presiding Officer, Hon. Balisong, and on motion of Hon. Aliping, Hon. De Vera and Hon. Sembrano, seconded by Hon. Cosalan and Hon. Balajadia,

BE IT ORDAINED BY THE SANGGUNIANG PANLUNGSOD (CITY COUNCIL) IN SESSION ASSEMBLED THAT:

SECTION 1. Ordinance Numbered 271, Series of 1957, as amended, is hereby further amended to read as follows:

"SECTION 1. This Ordinance shall be known and referred to as the 'Curfew Ordinance for Minors' in the City of Baguio.

"SECTION 2. As a measure to protect children from crime, violence and harm, children shall not roam or play in the streets, roads, plazas, parks or other public places or establishments in the City of Baguio between the hours of 7:00 o'clock in the evening to 5:00 o'clock the following morning. For purposes of this Ordinance, a child/children is defined as a person/persons below sixteen (16) years of age.

"SECTION 3. Any child who does not comply with Section 2 hereof shall be dealt with as follows and in accordance with Republic Act. No. 9344:

First non-compliance – the child shall be referred to the guidance counselor of the Council for the Protection of Youth and Children.

Second non-compliance – the child shall undergo counseling by the City Social Welfare Office (Silungan Center).

Third and subsequent non-compliance – the child shall be put by the City Social Welfare Office under an intervention program, which may include community service. The City Social Welfare Office shall ensure that the community service is appropriate to the child and is consistent with the goals of the intervention program.

“SECTION 4. An adult purporting to be their guardian, parent or authorized custodian within the 3rd degree of relationship, either by consanguinity or affinity, shall be penalized under other applicable laws and ordinances.

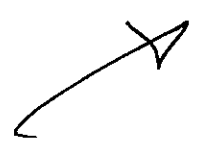
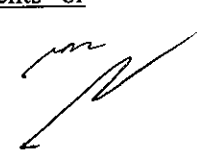
“SECTION 5. EXEMPTIONS:

- a. The children are in the company of their parents, guardians or any adult authorized to give them custody or protection: Provided, That said adult can show proof of relationship or guardianship vis-à-vis the children; and, Provided Further, That in no case shall the child be allowed the privilege of exemption should the adult purporting to be their guardian, parent or authorized custodian is not within the 3rd degree of relationship, either by consanguinity or affinity.
- b. The child has attended a party, game, or other school affair, church functions or any other authorized affair, which may last beyond curfew time: Provided, That the police was notified of such affair or function at least 24 hours before it is held. A certificate by the teacher or head of the institution to the effect that said child attended said program or affair that was terminated within the hours aforesated shall be valid excuse for the offense.
- c. College and/or high school students under the age of 16 shall be exempted from the coverage of this Ordinance: Provided, That they can show valid certification from their respective deans and principals that their class schedules do not permit them to go home before the curfew period established or that a special school undertaking requires them to stay within the curfew period; and, Provided Further, That the concerned children can show proofs of identification and enrolment.
- d. Church members below 16 years of age who are involved in church and other religious activities shall be exempted from the coverage: Provided, That they can show valid certification from the head or leaders of their religious organizations or denominations stating that the said scheduled activities do not permit them to go home before the curfew period established or that the said undertaking requires them to stay out of their residence within the said curfew period; Provided Further, That the concerned children can show proof of membership with said religious organizations or denominations.
- e. Activities sanctioned by school administration that are scheduled within the curfew period involving, among others, children below 16 years of age shall need prior exemption from the Office of the City Mayor through a letter signed by the person in charge of said activity and noted by the deans or principals of the concerned educational institution.

“SECTION 6. The City Treasury Office shall screen, examine and exercise discretion in giving due course in the processing of special permits for activities purportedly involving ‘only those of legal age’, and to coordinate with concerned officials of the Baguio City Police Office (BCPO) for the inspection of the same during the implementation and make sure that the staging of said events are in compliance with this Ordinance.

SECTION 7. For nocturnal activities mentioned in the previous Section, no application of special permits shall be given due course without the written undertaking of the organizers that they shall abide by the provisions of this Ordinance.

“SECTION 8. Children who do not comply with Section 2 hereof shall be turned over by the police or barangay officials to the custody of the City Social Welfare Office, which shall immediately communicate with the parents or guardians of the children so that they can be fetched.



"SECTION 9. The City Social Welfare Office shall maintain the appropriate facility, in coordination with the Women and Children's Desk of the BCPO, and provide for the basic needs of the children in their custody in the facility.

The matter of funding needed in the implementation of Section 8 and Section 9 hereof shall be taken up after this Ordinance is approved."

SECTION 2. Separability Clause. If, for any reason or reasons, any part or provision of this Ordinance shall be held to be unconstitutional or invalid, the other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect.

SECTION 3. Repealing Clause. All ordinances, resolutions and regulation or part or parts thereof, which are inconsistent with this Ordinance, are hereby repealed or modified accordingly.

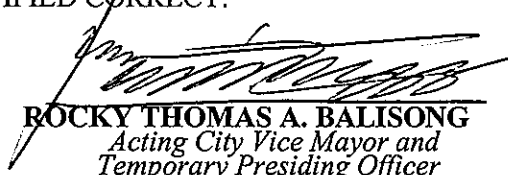
SECTION 4. Effectivity Clause. This Ordinance shall take effect in accordance with the provisions of the Local Government Code of 1991.

Passed.

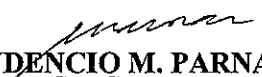
Hon. Weygan and Hon. Tabora were out of the Session Hall during the deliberation and voting.

Hon. City Vice Mayor Daniel T. Fariñas is the Acting City Mayor.

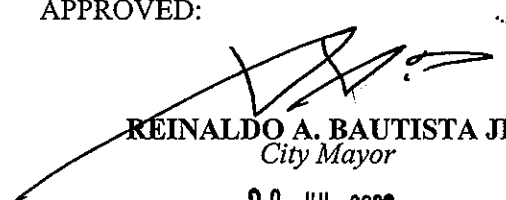
CERTIFIED CORRECT:


ROCKY THOMAS A. BALISONG
Acting City Vice Mayor and
Temporary Presiding Officer

Attested:


PRUDENCIO M. PARNACIO
City Secretary

APPROVED:


REINALDO A. BAUTISTA JR.
City Mayor

09 JUL 2009